



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

March 30, 2023

POLICE COMMISSIONER'S PENALTY DEPARTURE

Re: CCRB Case No. 202105905 (Incident Date: October 1, 2021) regarding Police Officer Kenneth Granshaw, Tax No. 936693 (DADS No. 2023-27816)

Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances of this matter and determined that no disciplinary action is warranted in connection with the single allegation that Officer Granshaw improperly threatened to arrest an individual.

In this matter, Police Officer Granshaw was performing solo patrol and had just stopped a vehicle for a traffic infraction when he was approached by an individual. The individual was only a few feet away and attempted to engage in a conversation with Officer Granshaw. Officer Granshaw, in an effort to maintain his safety and be able to focus on the driver of the stopped vehicle, warned the individual to back up while he was engaged in a car stop. While this initial warning worked for a short period of time, the individual then approached again with questions for Officer Granshaw. This time, Officer Granshaw warned the individual by stating "Sir, I am on a car stop. Sir, do you want to be arrested for obstructing governmental administration?" This second warning was not an unwarranted threat, but rather an explanation of a prospective consequence which might result from further actions by the individual. This second warning successfully persuaded the individual to not approach Officer Granshaw to the point that his safety was placed at further risk.

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Therefore, based on the foregoing, Police Officer Granshaw will receive no disciplinary action for the alleged violation of Administrative Guide Procedure 304-06 (1) (Prohibited Conduct/Threat of Arrest).

Yours truly,

A handwritten signature in black ink, appearing to read 'L. Soto', with a stylized flourish extending to the right.

Lourdes Soto
Deputy Chief
Commanding Officer
Police Commissioner's Office